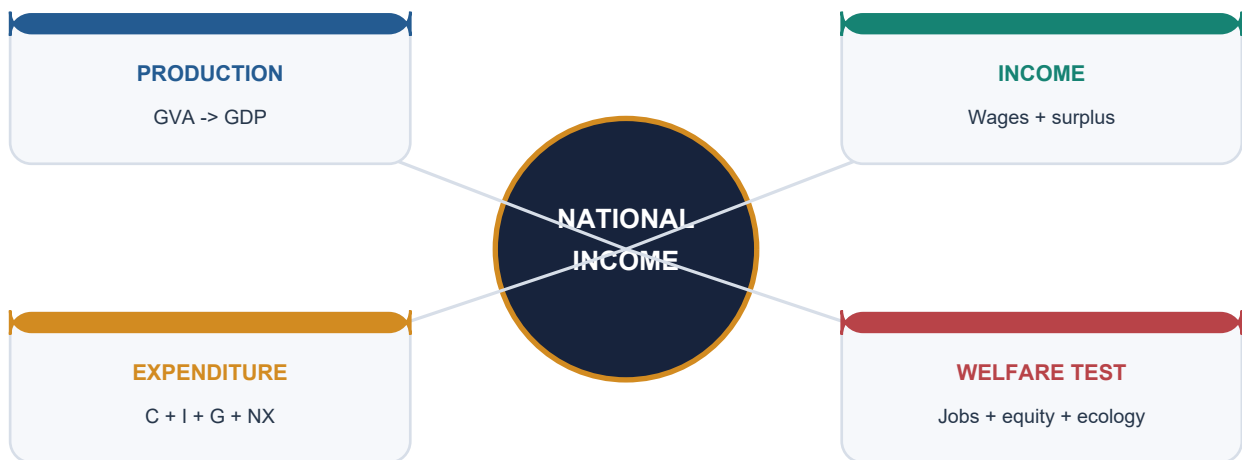


Lok Adalats and Other Courts - CORE / EXAM-COMPLETE

UPSC complete learning session | Foundation to advanced | Concepts, evidence, practice and answer writing



Deterministic fallback visual: national income viewed through production, income, expenditure and welfare lenses.

Source order: repository knowledge -> official current linkage -> clearly marked analysis. No fabricated PYQs or statistics.

Lok Adalats and Other Courts - CORE / EXAM-COMPLETE

Subject: Polity · **Tier:** Core · **GS Paper:** GS-II **Official clause:** "Structure, organization and functioning of the Executive and the Judiciary" and "mechanisms, laws, institutions and Bodies constituted for the protection and betterment of these vulnerable sections." **Grounded in:** Constitution of India, Art 39A; Legal Services Authorities Act 1987; Family Courts Act 1984; Gram Nyayalayas Act 2008; M. Laxmikanth, *Courseware on Indian Polity*, Eighth Edition (2026), Ch. 38. **Status legend:** FACT: constitutional/settled static fact · □ statute/rule · □□ judicial holding · ANALYSIS: analytical inference/current implementation caveat. **Core firewall:** This is the consolidated owner for legal-services institutions, ordinary and Permanent Lok Adalats, Family Courts and Gram Nyayalayas. Judiciary/body owners should cross-link, not reproduce these capsules. It is independently sufficient for Prelims and 10/15/20-mark Mains; no Advanced companion is required.

1. Constitutional anchor: access to justice

FACT: Article 39A directs the State to secure a legal system promoting justice on equal opportunity and to provide free legal aid so that economic or other disability does not deny access to justice.

□□ The Supreme Court has linked meaningful legal aid and speedy justice to fair procedure under Article 21.

ANALYSIS: Article 39A is a Directive Principle, but statutes and rights jurisprudence give operational content to its access-to-justice objective.

2. Legal-services authorities: institutional ladder

□ The Legal Services Authorities Act 1987 creates this structure:

National Legal Services Authority (NALSA)
|
State Legal Services Authorities
|
High Court Legal Services Committees
|
District Legal Services Authorities
|
Taluk Legal Services Committees

Institution	Key position
NALSA	Lays down policy/principles and frames effective/economical legal-services schemes; Patron-in-Chief is the CJI; Executive Chairman is a serving/retired Supreme Court judge nominated in the statutory manner
State Authority	Implements Central policy and coordinates State legal services/Lok Adalats; Patron-in-Chief is the Chief Justice of the High Court
High Court Committee	Provides legal services for matters before the High Court
District Authority	Implements programmes and coordinates Taluk activity; District Judge is chairman
Taluk Committee	Coordinates services and Lok Adalats at taluk/mandal level

Eligibility for free legal services

□ Section 12 covers specified vulnerable groups, including members of SC/ST, trafficking/begar victims, women or children, persons with disability, disaster/violence victims, industrial workmen, persons in custody and persons below the prescribed income limit. The authority must also be satisfied that there is a prima facie case to prosecute or defend.

Trap: Free legal aid is broader than representation in a criminal trial and is not confined to persons below an income threshold; several statutory categories are status-based.

3. Ordinary Lok Adalat

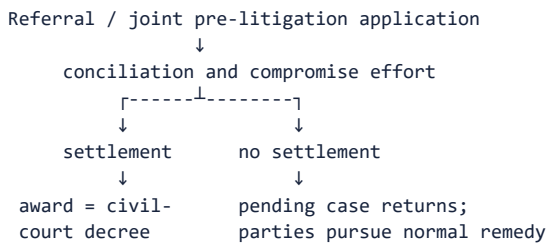
3.1 Nature and jurisdiction

□ Authorities/committees organise Lok Adalats with serving/retired judicial officers and other prescribed persons. They may handle:

- a pending case; or
- a pre-litigation matter falling within a court's jurisdiction,

but not an offence that is legally non-compoundable.

3.2 Process and effect



□ The ordinary Lok Adalat:

- seeks an amicable settlement and is guided by justice, equity, fair play and legal principles;
- **cannot compel a compromise or adjudicate the dispute on merits;**
- makes an award when parties settle;
- gives the award the status of a civil-court decree;
- makes the award final and binding, with no statutory appeal; and
- enables refund of court fee in a referred case.

□□ An award based on compromise is ordinarily challengeable only through constitutional review on limited grounds such as absence of genuine consent/fraud-not by a statutory appeal.

Master trap: Finality of an agreed award does not authorise a Lok Adalat to impose a merits decision when compromise fails.

3.3 Forms

Form	Feature
National/State/District Lok Adalat	General sittings across jurisdictions
Mobile Lok Adalat	Travels to improve access
Mega/continuous/daily Lok Adalat	Administrative formats for volume or regular settlement
E-Lok Adalat	Technology-enabled settlement format

ANALYSIS: These formats do not alter the ordinary Lok Adalat's consent-based legal character.

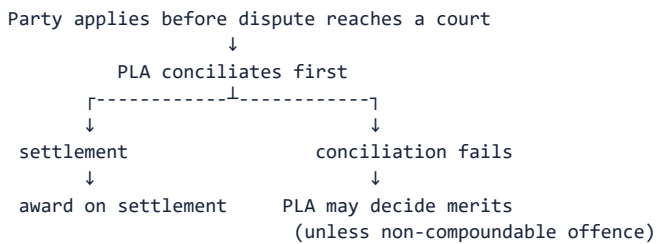
4. Permanent Lok Adalat (PLA)

□ A Permanent Lok Adalat is established under the Legal Services Authorities Act for one or more **public utility services**. It is permanent in institution and works principally at the pre-litigation stage.

4.1 Public utility services

Statutory illustrations include transport, postal/telephone, supply of power/light/water, public conservancy/sanitation, hospital/dispensary and insurance services, plus notified services.

4.2 Hybrid process



- Key distinctions:

- jurisdiction is pre-litigation and sector-specific;
- a party cannot invoke another court for that dispute after applying while PLA proceedings continue;
- PLA first conducts conciliation;
- if conciliation fails, it may decide the dispute on merits, subject to statutory exclusions and the Central Government's notified pecuniary limit;
- its award is final, binding, deemed a civil-court decree and not to be called in question in an original suit/application/execution proceeding;
- it is guided by natural justice, objectivity, fair play, equity and other principles of justice, and is not bound by the CPC or Evidence Act.

Trap: Do not attach a stale rupee ceiling to the Act. The Central Government may revise the limit by notification; verify the current notification for a current-affairs answer.

5. Ordinary Lok Adalat versus Permanent Lok Adalat

Axis	Ordinary Lok Adalat	Permanent Lok Adalat
Statutory route	Ch. VI, 1987 Act	Ch. VI-A, inserted in 2002
Institution	Organised sittings	Standing body
Disputes	Pending or pre-litigation within court jurisdiction	Pre-litigation public-utility disputes
Settlement method	Conciliation/compromise only	Conciliation first
If settlement fails	No merits adjudication	May adjudicate merits
Criminal bar	Non-compoundable offences excluded	Same exclusion
Award	Deemed decree; final and binding	Deemed decree; final and binding

6. Family Courts

□ The Family Courts Act 1984 provides specialised courts for conciliation and speedy settlement of family/matrimonial disputes.

Feature	Position
Establishment	State Government, after consultation with High Court; mandatory for specified cities/towns above the statutory population threshold and discretionary elsewhere
Jurisdiction	Matrimonial status, property between spouses, legitimacy, maintenance, guardianship/custody/access and connected family disputes
Primary approach	Endeavour toward settlement before adjudication where consistent with the case
Procedure	Flexible statutory procedure; may receive material that assists effective resolution
Privacy	Proceedings may be held in camera and must be so held if either party desires
Lawyers	No right as of course to legal representation; court may seek legal-expert assistance
Appeal	To High Court from a non-interlocutory judgment/order, subject to statutory exclusions

ANALYSIS: Specialisation and conciliation do not remove judicial fairness. Family Courts exercise statutory judicial power and differ from compromise-only ordinary Lok Adalats.

7. Gram Nyayalayas

□ The Gram Nyayalayas Act 2008 seeks doorstep justice in rural areas through courts of first instance.

Design element	Position
Establishment	State Government, after consultation with High Court; statutory wording is enabling and implementation is State-dependent
Level	Intermediate Panchayat or group of contiguous Panchayats; headquarters may be mobile
Presiding officer	Nyayadhikari, appointed by State Government in consultation with High Court; qualified for appointment as Judicial Magistrate First Class
Jurisdiction	Specified criminal offences and civil disputes in the Schedules; limits may be altered through statutory process
Territorial access	Mobile court may hold proceedings close to where parties reside/cause arose
Settlement	Endeavour to assist conciliation in civil disputes; conciliators may be used
Procedure	Summary orientation, natural justice and statutory flexibility
Appeals	Criminal appeal to Court of Session; civil appeal to District Court, subject to statutory exceptions

ANALYSIS: A Gram Nyayalaya is a statutory court-not a village panchayat, khap, mediation camp or Lok Adalat. Current counts and operational coverage vary and require dated official verification.

8. Comparative institution map

Institution	Primary function	Consent needed for outcome?	Can decide merits?	Appeal/control
Ordinary Lok Adalat	Settlement	Yes	No	No statutory appeal; limited judicial review
Permanent Lok Adalat	Public-utility pre-litigation conciliation/adjudication	Not for post-failure merits award	Yes	Statutory finality; constitutional review remains
Family Court	Specialised family adjudication + conciliation	Not for judgment	Yes	Statutory High Court appeal with exclusions
Gram Nyayalaya	Rural first-instance court	Not for judgment	Yes	Session/District appellate routes

9. Other courts and justice-delivery designs

Design	Legal source	Core function	UPSC distinction
Fast Track Courts	Government/finance-supported scheme implemented through States and High Courts	Additional capacity for selected pending cases	Not a separate constitutional species or uniform permanent court
Special Courts	Particular statute or valid notification	Trial/adjudication of a defined offence, person or subject	Jurisdiction depends on the parent law
Commercial Courts	Commercial Courts Act 2015, as amended	Specified-value commercial disputes with case-management and pre-institution processes	Statutory civil courts, not tribunals or Lok Adalats
Evening/Morning Courts	High Court/State administrative design under ordinary court authority	Extend hearing hours for suitable minor matters	Administrative format, not a new constitutional hierarchy
Family Courts	Family Courts Act 1984	Family adjudication plus settlement orientation	Judicial decision remains available
Gram Nyayalayas	Gram Nyayalayas Act 2008	Local/mobile first-instance justice	Statutory court with appeals

ANALYSIS: A “special”, “fast”, “commercial” or “evening” label identifies a design or jurisdiction. It does not by itself answer appointment, procedure, appeal or constitutional status.

10. Mediation Act 2023 interface

□ The Mediation Act 2023 supplies a general statutory framework for mediation, including pre-litigation, institutional, online and community-mediation concepts, mediated-settlement agreements, confidentiality and enforcement/challenge rules. Its commencement, rules and any sectoral exclusions must be checked provision by provision on the control date.

MEDIATION

neutral facilitates party-made settlement

#

ORDINARY LOK ADALAT

statutory forum records compromise as award/deemed decree

#

PERMANENT LOK ADALAT

conciliation first; eligible public-utility dispute may then be decided on merits

#

COURT / TRIBUNAL

authoritative adjudication under jurisdiction and appeal/review rules

The Commercial Courts Act's pre-institution mediation route and the Mediation Act must not be collapsed into the Lok Adalat regime. Settlement remains party-made in mediation; an ordinary Lok Adalat award follows compromise; a PLA has a limited post-conciliation adjudicatory power.

11. Courts, tribunals and ADR

Axis	Court	Tribunal	ADR/mediation	Lok Adalat
Source	Constitution/statute and judicial hierarchy	Statute under constitutional limits	Contract/statute/court referral	Legal Services Authorities Act
Primary role	Adjudication	Specialised adjudication	Facilitated/party-chosen resolution	Statutory settlement; PLA hybrid
Binding outcome without consent	Yes	Yes	Generally no mediated settlement without consent	Ordinary: no; PLA: yes after failed conciliation within scope
Appeal/review	Hierarchical/statutory	Statutory appeal plus constitutional review	Enforcement/challenge under governing law	Statutory finality plus limited constitutional review

Trap: “Alternative forum” does not mean identical power. Consent, subject matter, pre-litigation status, merits power, enforcement and review must be tested separately.

12. Leading cases and legal effects

Decision	Decision year	Exam-safe holding/use
<i>Hussainara Khatoon v. State of Bihar</i>	1979	Speedy justice and legal assistance are integral to fair procedure under Art 21
<i>State of Punjab v. Jalour Singh</i>	2008	Ordinary Lok Adalat has no adjudicatory role; award must rest on compromise
<i>Afcons Infrastructure v. Cherian Varkey Construction</i>	2010	Structured guidance on court referral to ADR processes
<i>InterGlobe Aviation v. N. Satchidanand</i>	2011	Ordinary Lok Adalat and Permanent Lok Adalat are legally distinct; merits power cannot be casually transferred
<i>Bar Council of India v. Union of India</i>	2012	Upheld the PLA public-utility conciliation-cum-adjudication design
<i>Patil Automation v. Rakheja Engineers</i>	2022	Commercial pre-institution mediation requirement is mandatory where the statutory urgent-relief exception does not apply
<i>Canara Bank v. G.S. Jayarama</i>	2022	Clarified PLA conciliation procedure and its limited power to decide an eligible dispute after conciliation fails

ANALYSIS: Case use must track the exact statutory mechanism. A decision about commercial mediation, ordinary Lok Adalat or PLA cannot be applied as if all three were the same forum.

13. Constitutional significance and implementation limits

Advantages

- lowers cost, distance and procedural complexity;
- improves access for vulnerable litigants;
- promotes conciliation where continuing relationships matter;
- diverts suitable disputes from regular courts;
- combines legal aid with institutional access.

Limits

- settlement systems risk pressure or unequal bargaining if consent is not real;
- specialised/local institutions need judges, staff, awareness and infrastructure;
- statutory finality cannot cure jurisdictional error or denial of natural justice;
- low utilisation or uneven State implementation may prevent designed access from becoming actual

access.

ANALYSIS: ADR is a complement, not a wholesale substitute, for independent courts. The constitutional test is affordable access **with** voluntariness, fairness and review against illegality.

14. Answer architecture (10/15/20-mark support)

14.1 Demand map

Demand	Answer spine
Lok Adalat significance	Art 39A -> statutory design -> consent/finality -> access gains -> safeguards
Ordinary versus PLA	jurisdiction -> stage -> conciliation -> merits power -> award
Alternative justice institutions	legal-services ladder -> four institutions -> comparative matrix -> implementation
Gram Nyayalayas	statutory design -> mobile/local jurisdiction -> appellate safeguard -> operational gaps
Family Courts	specialisation -> conciliation/privacy/flexibility -> fairness/capacity

14.2 Thesis options

- *Lok Adalats constitutionalise access through consensual settlement, but their legitimacy depends on genuine compromise rather than docket disposal.*
- *The Permanent Lok Adalat is a hybrid: conciliation remains first, but limited statutory adjudication follows failure in public-utility disputes.*
- *India's access-to-justice architecture is plural, yet statutory proximity must be matched by personnel, awareness and procedural fairness.*

14.3 Mark-scaled structures

Marks	Structure	Evidence
10	Art 39A -> design -> 2 distinctions -> verdict	3-4 statutory features
15	Institutional ladder -> ordinary/PLA comparison -> benefits/limits	5-6 anchors
20	Constitutional anchor -> four-institution matrix -> safeguards -> implementation reform -> conclusion	7-9 anchors

14.4 Evidence units

- **Claim:** an ordinary Lok Adalat is conciliatory, not adjudicatory. **Evidence:** □ compromise design and award provisions. **Analysis:** consent legitimises finality. **Qualification:** limited constitutional challenge remains.
 - **Claim:** PLA fills a pre-litigation public-service gap. **Evidence:** □ public-utility and post-conciliation merits powers. **Analysis:** combines settlement with enforceable resolution. **Qualification:** jurisdiction is sectoral and notification-sensitive.
 - **Claim:** proximity alone does not ensure justice. **Evidence:** □ mobile Gram Nyayalaya design. **Analysis:** reduces distance. **Qualification:** State establishment, staffing and awareness determine actual access.
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15. Must-Know Facts and traps

- FACT: Art 39A is the constitutional anchor.
- □ Legal Services Authorities Act 1987 creates the authority ladder and Lok Adalats.
- □ Ordinary Lok Adalat cannot decide merits after failed compromise.
- □ PLA may decide merits after failed conciliation in eligible public-utility disputes.
- □ Both awards are treated as civil-court decrees and are final/binding.
- □ Family Courts and Gram Nyayalayas are statutory courts with adjudicatory power.
- □ Fast Track Courts and evening courts are designs/schemes; special and commercial courts derive jurisdiction from their governing law.
- □ Mediation, ordinary Lok Adalat and PLA have different consent and merits-decision rules.
- ANALYSIS: Current pecuniary limits, notified services and operational counts require dated official verification.

Source discipline

- Never use "people's court" to imply absence of law or fairness.
- Do not say all Lok Adalat disputes are pre-litigation.
- Do not say no legal challenge of any kind can ever lie against an award.
- Do not merge Permanent Lok Adalat with an ordinary permanent sitting.
- Do not call Gram Nyayalaya a Panchayat institution.

Cross-links

- High Court supervision/review: [High-Court.md](#)
- Tribunals and specialised adjudication: [Administrative-Tribunals.md](#)
- Statutory/quasi-judicial bodies: [Statutory-Regulatory-and-Quasi-Judicial-Bodies.md](#)
- DPSP context: [Directive-Principles.md](#)